

# A DATA CENTER IS PROPOSED NEAR YOU: WHAT NOW?

Texas resident checklist | Last reviewed September 2026 | [powergrabtx.com/guides/data-center-near-you](https://powergrabtx.com/guides/data-center-near-you)

## 10 days

Mailed notice before a city zoning commission hearing (owners within 200 ft only)

## 30 days

Typical window after a TCEQ notice. Some air permits lose hearing rights after the first notice.

## 20%

Of land within 200 ft signing a protest forces a 3/4 council vote

## 10 days

Public records: longer than this and the office must tell you when

### RIGHT AWAY

- ☐ Find out whether the site is inside city limits, in the city's extraterritorial jurisdiction (ETJ) or on unincorporated county land
- ☐ Join TCEQ's mailing list for your county
- ☐ Search TCEQ's Commissioners' Integrated Database for the company and address
- ☐ Pull up the next planning commission, council, commissioners court and school board agendas
- ☐ Contact neighbors within 200 feet about a protest petition

### WHEN A NOTICE APPEARS

- ☐ Write down every deadline in the notice. The NORI window for air permits is the one people miss.
- ☐ File a written TCEQ comment, and a contested case hearing request if you are an affected person
- ☐ Request a TCEQ "public meeting" by name, and ask your legislator to request one too
- ☐ Sign up to speak at the zoning hearing and submit written comments
- ☐ File public information requests for NDAs, emails and applications

### WHO TO CALL

**Comment on or track a TCEQ permit**

TCEQ Office of the Chief Clerk: [tceq.texas.gov/goto/comment](https://tceq.texas.gov/goto/comment) | 512-239-3300

**Understand contested case hearings**

TCEQ Office of Public Interest Counsel: 512-239-6363

**Check where a permit application stands**

TCEQ Public Education Program: 800-687-4040 | [pep@tceq.texas.gov](mailto:pep@tceq.texas.gov)

**Records request stalled**

Attorney General Open Government Hotline: 512-478-6736 | toll-free 877-673-6839

Also: your city secretary or county clerk (agendas and speaker sign-up), your groundwater conservation district (new wells), and your state representative and senator (a local legislator's request triggers a TCEQ public meeting).

### BEFORE THE FINAL VOTE

- ☐ File the protest petition with the city
- ☐ Ask for clawbacks, water limits, noise rules and setbacks in any abatement or development agreement
- ☐ Ask whether the company has filed its TWDB water use survey

### AFTER A DECISION

- ☐ 20 days to appeal a city staff decision to the Board of Adjustment
- ☐ 23 days after notice of a signed TCEQ permit to file a motion to overturn
- ☐ 25 days after a TCEQ commissioners' decision to file a motion for rehearing
- ☐ Talk to a lawyer early if you may go to court. Some deadlines are only 10 days.

## THE FULL GUIDE, WITH SOURCES AND EVERY STEP EXPLAINED

[powergrabtx.com/guides/data-center-near-you](https://powergrabtx.com/guides/data-center-near-you) | Weekday Morning Briefing: [powergrabtx.com/stay-informed](https://powergrabtx.com/stay-informed)

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